

entitled to notice of the proceedings before the Master, subject to such directions as the Master may make in respect thereof.

The above Orders 5, 6, and 7, are after the English Orders 18, 19, and 20, of April, 1850.

English  
Orders.

It may often appear, that the Order for a summary reference to the Master may on the coming in of the answer, or upon view of other circumstances, appear to be erroneous. It may happen that evidence is necessary to be taken before the hearing, in furtherance of justice. In such cases, and others, it would be injurious to hold the Order made, as final. The following Order then provides for relief, under such circumstances, by another motion :—

Relief against  
proceedings  
under these  
Orders.

Any Order or proceeding made, or purporting to be made in pursuance of these Orders, may be discharged, varied or set aside, on motion ; and any Order for accelerating proceedings may be made by consent.

VIII.  
Motion to set  
aside or  
vary Order.

This is after the English Order 29 of April, 1850.

English Order.

If, at any time after these Orders come into operation, any suit for any of the purposes to which the forms set forth in the Schedule A are applicable shall be prosecuted to a hearing in the usual course, and upon the hearing it shall appear to the Court that a decree to the effect of the decree then made, or a decree equally beneficial to the plaintiff, might have been obtained in the manner authorised by the 77th of the Orders of the 7th May, 1850, the Court may order that the increased costs which have been occasioned by the proceedings adopted, beyond the amount of costs which would have been sustained in the proceedings under the said Order, shall be borne and paid by the plaintiff.

IX.  
Parties ne-  
glecting to pro-  
ceed under  
these Orders,  
when practica-  
ble, subject to  
costs.

The following Order, regulating the proceedings before the Master, taken from the 17th English Order, is little more than a confirmation of the powers which that officer already possessed, but may be taken as explanatory of the other Orders governing the Master's practice, which are given in a former chapter, and which are still in force except where they are at variance with the following. One effect however of this Order, will be to shorten the forms

Master's  
Office.